Supreme Court Judgement: It declared paragraph 7 of the Tenth Schedule (which was inserted by the 52nd Amendment Act, 1985) as unconstitutional for violating the provision under Article 368(2). It held that paragraph 7 required to be ratified by at least half of the State Legislatures for excluding the jurisdiction of the Supreme Court under Article 136 and the High Courts under Article 226. However, the court upheld the validity of the remaining part of the Tenth Schedule.

Indra Sawhney Case (1992)

Name of the Case	: Indra Sawhney vs. Union of India
Year of Judgement	: 1992
Popular Name	: Mandal case
Related Topic/Issue	: Reservation for OBCs in government jobs
Related Article/Schedule	: 16

Supreme Court Judgement: It upheld the validity of the impugned executive order which provided 27% reservation of jobs to the OBCs under the provision of Article 16(4), with certain conditions like exclusion of creamy layer, no reservation in promotions, maximum reservation should not exceed 50%, ceiling of 50% on reservation in backlog vacancies, no relaxation in qualifying marks for promotions and so on. On the other hand, it invalidated another impugned executive order which provided 10% additional reservation of jobs for other economically backward sections who are not covered by any existing schemes of reservation.

Impact of the Judgement: This judgement led to the following: (i) Appointment of the Ram Nandan Committee to identify the creamy layer among the OBCs; (ii) Establishment of the statutory National Commission for BCs[13] to examine the complaints of under-inclusion, over-inclusion or non-inclusion of any class of citizens in the list of BCs; and (iii) Enactment of five amendment acts, namely, the 76th Amendment Act, 1994 that has placed the Tamil Nadu reservation act in the Ninth Schedule; the 77th Amendment Act, 1995 that has nullified the ruling with regard to reservation in promotions; the 81st Amendment Act, 2000 that has nullified the ruling with regard to backlog vacancies; the 82nd Amendment Act, 2000 that has provided for relaxations in qualifying marks and standards of evaluation in matters of reservation in promotions; and the 85th Amendment Act, 2001 that has provided for consequential seniority in matters of promotion by virtue of rule of reservation for the SCs and STs.

Mohini Jain Case (1992)

Name of the Case	: Mohini Jain vs. State of Karnataka
Year of Judgement	: 1992
Popular Name	: Capitation Fee case
Related Topic/Issue	: Right to education
Related Article/Schedule	: 21 & 41